

**CUI**  
**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION**  
**SOLICITATION [SPE7L125R0032]**

☒ **ORIGINAL**

☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis.
3. The supplies/services required to meet the using activity's needs are described as follows:

| BRIEF DESCRIPTION   | NSN              | PART NUMBER | BASE QUANTITY | OPTION QUANTITY | EST. VALUE    | AMSC |
|---------------------|------------------|-------------|---------------|-----------------|---------------|------|
| SHEAR CABLE, WEAPON | 1095-01-721-1483 | 1576        | 360           | 20%             | \$ [REDACTED] | D    |

Identify end item, weapon system, or class of item:

The solicitation is for a DLA Direct Requirement, PR 7008949149. End Item is SHEAR CABLE,

- WEAPON SYSTEM for B2 BOMBER weapon system.

This is a definite quantity contract, for a quantity of: 360 units, with a 20% Option, for a total quantity of 432 units

ESTIMATED BASE VALUE:

- \$ [REDACTED]

ESTIMATED TOTAL VALUE (BASE + OPTIONS):

- \$ [REDACTED]

4. The statutory authority permitting other than full and open competition is:
  - ☐ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
  - MCFARLANE AVIATION, LLC (4YMQ8) with part number 1576 are uniquely qualified because they are the only known source with the data or rights to the data necessary to manufacture this item.

The use of the authority cited below:

- ☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

Controlled by: DLA Land and Maritime  
Controlled by: [FLSC]  
CUI Category: PROCURE/SSI  
Distribution/Dissemination Control: FED ONLY  
POC: [REDACTED]

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- ☒ *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Product Specialist, [REDACTED], certified the technical data certifications on January 21, 2025 (see attachment).

There is no outstanding DLA Form 339 request for additional sources. DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the government.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:
  - ☒ The acquisition will be synopsized on SAM.gov for 15 days prior to the solicitation opening. At the completion of the synopsis period, the Purchase Request (PR) will be solicited on the internet for 30 days via the DLA Internet Bid Board System (DIBBS).
  - ☒ Other: Sources Sought notice posted to SAM.gov on 1/16/2025.
7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.
  - This is a definite quantity contract, for a quantity of: 360 units, with a 20% Option, for a total quantity of 432 units. A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.
8. Market Research/Efforts to Obtain Competition:
  - Market research consisted of review of past procurements, market surveys received from interested parties, and internet sources.
  - No results returned through GSA Advantage.
  - Haystack had no listed technical characteristics to utilize.
  - Procurement History: No procurement history listed in EBS or Haystack. Product transferred from Air Force to DLA managed. Existing Air Force contract provided to contract specialist with an award date of 09/10/2024.
  - A sources sought notice was posted on SAM.gov from 01/16/2025 to 01/23/2025. A market survey copy was provided in the notice post. One response received from Venice Engineering (97JG3). They were sent a SAR package and after communication with the SAR AO, were no longer interested in submitting a SAR Package.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

- ☒ A market survey was conducted on/during 01/16/2025.

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Total number of vendors contacted: 1

- MCFARLANE AVIATION (4YMQ8)

Names of vendors contacted and didn't respond:

- NONE

Names of vendors contacted and responding:

- [REDACTED] from 4YMQ8 on 01/16/2025 & 01/20/2025 via email.

Techniques used to conduct survey:

- SAM.gov
- Email correspondence

Types of information requested:

- Business size
- Manufacturer or dealer
- Price breaks
- Commerciality
- Estimated delivery
- Quantity/Price sensitivity

Summary of information received:

- 4YMQ8 is small-sized manufacturer. Item is not commercial. [REDACTED]  
[REDACTED] Previous delivery, as outlined in Air Force Contract FA852024CB001, was initial delivery in 16 weeks, with subsequent delivery of 50 EA every 2 weeks thereafter. [REDACTED]  
[REDACTED]

Information received regarding the commerciality of the item(s):

- The COTS status for this item in the EBS system is "N". Market research did not yield any available commercial pricing. Mcfarlane stated they prefer to deal directly with the government. Mcfarlane stated that this is not a commercial item and the product specialist indicated that no COTS information was available. **The contracting specialist determines this item to be non-commercial.**

9. Additional facts supporting other than full and open competition are:

- [ X ] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is:

- MCFARLANE AVIATION, LLC (4YMQ8)

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11. The following actions are being taken to identify additional sources:

- [ X ] A sources sought notice was posted to SAM.gov on 01/16/2025 with a requested response date by 01/23/2025.
- [ X ] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
- [ X ] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. **DFARS PGI (Procedures, Guidance and Information)** 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification.

The most recent acquisition of this item was an Air Force Contract using Contract Number FA852024CB001. See Attachment. No Previous J&A as this is a first time buy.

**I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.**

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8381815

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WHITING.MONICA.L.1378381815  
Date: 2025.01.22 12:55:34 -05'00'

Contracting Officer

\_\_\_\_\_

Date

**APPROVAL/CERTIFICATION**

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.1  
251897324

Digitally signed by  
WIEBUSCH.JAMIE.1251897324  
Date: 2025.02.20 09:52:59 -05'00'

Competition Advocate Signature

\_\_\_\_\_

Date

**APPROVAL REQUIREMENTS**

[ X ] Up to \$750,000

Contracting Officer

[ X ] \$750,000 to \$15,000,000

Competition Advocate

Attachment(s):

MFG Tech Memo for Limited Sources

Previous Contract

PO History

Acquisition Planning Checklist